

Tentative Rulings for August 19, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVCO2605819	BUERMAN vs BLUE HILL SPECIALTY INSURANCE COMPANY	PETITION FOR SPECIAL PROCEEDING

Tentative Ruling:

GRANT

2.

CASE #	CASE NAME	HEARING NAME
CVRI2205432	TRACY III vs CITY OF HEMET	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON 3RD AMENDED COMPLAINT

Tentative Ruling:

GRANT Defendants' Request for Judicial Notice. SUSTAIN Defendants' Evidentiary Objections. DENY the Motion for Summary Judgment. DENY the Motion for Summary Adjudication as to the first and second causes of action, and for the claim for punitive damages. GRANT the Motion for Summary Adjudication as to the third cause of action.

Assault and Battery (First Cause of Action)

Whether Sergeant Paez's use of force was objectively reasonable requires careful attention to the facts and circumstances of the case, whether the subject posed an immediate threat to the safety of the officers or others, and whether the decedent was actively resisting arrest or attempting flight. Here, without reciting all the facts, Hemet PD Investigators lured decedent out of his motel room by using a confrontational ruse (throwing a bottle through the motel window), and then when he exited the motel room, chased him into the parking lot, where he was shot, never identifying themselves as law enforcement officers. The decedent had a gun which he dropped about 22 feet from where he was shot and killed. Several camera videos captured images of the events that transpired that night. There is testimony about the facts of the case from Sergeant Paez .

Overall, Plaintiffs have arguably established that there are triable issues as to whether the use of deadly force was objectively reasonable under the totality of the circumstances. Any doubt about the propriety of granting the motion is resolved in favor of the party opposing it. (*Marshak v. Ballesteros* (1999) 72 CalApp.4th 1514, 1517.) Moreover, "[Whether a particular use of force was reasonable is rarely determinable as a matter of law." (*Chew v. Gates* (9th Cir. 1994) 27 F.3d 1432, 1443.)

DENY Summary Adjudication.

Negligence (Second Cause of Action)

As stated above, based on the videos and testimony regarding the incident, there are triable issues of fact as to whether the use of deadly force was reasonable under the totality of the circumstances.

DENY Summary Adjudication.

Violation of the Bane Act (Third Cause of Action)

To be actionable, a Bane Act claim requires admissible evidence of the Defendant's specific intent to violate Plaintiff's constitutional rights. Such intent can be proven by evidence of recklessness. (*S.R. Nehad v. Browder* (2019) 29 F.3d 1125, 1142, fn.15.) Here, while the shooting may have been unreasonable under the circumstances, there is no evidence of recklessness. For example, there is no evidence that Paez was involved in the tactical decision to lure decedent out of the motel room using the confrontational ruse detailed above, or that he had anything to do with the decision not to identify themselves as law enforcement officers. Paez's actions appear to be at most negligent, rather than reckless.

GRANT the motion for Summary Adjudication.

Collateral Estoppel

Decedent's Federal Action was dismissed with prejudice on November 25, 2025. (COE, Ex.14.) In *Tukes v. Richard* (2022) 81 Cal.App.5th 1, the Court of Appeal held that while claim preclusion required only a final judgment on the merits, issue preclusion required "actual litigation" of the issue, a requirement that would be meaningless if voluntary dismissal with prejudice was sufficient. (*Id.* at 23.) This reasoning is persuasive. The dismissal of the Federal Action with prejudice does not preclude Plaintiff's claims based on similar issues in the present action.

DENY Summary Adjudication of this issue.

Governmental Immunity

As stated previously, the court has found triable issues as to whether Paez's use of deadly force was reasonable. While Govt. Code § 820.2 grants immunity to public employees for injuries resulting from discretionary acts, Section 820.2 does not provide immunity from liability for a peace officer for the use of unreasonable force in making an arrest. (*Scruggs v. Haynes* (1967) 252 Cal.App.2d 256, 267-268.) Govt. Code § 820.2 is inapplicable here.

DENY Summary Adjudication of this issue.

Punitive Damages

There is evidence that the force used by Paez was unreasonable. There are triable issues as to whether the use of unreasonable deadly force is sufficiently despicable to constitute malice or oppression.

DENY Summary Adjudication of this issue.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502376	MERCER vs FCA US LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT the motion. Plaintiff is awarded attorneys fees in the reduced reasonable amount of \$15,200 and costs of \$6,900.20 for a total award of \$22,100.20.

Plaintiff counsel's requested hourly rates are excessive for the Riverside geographic area. The court will reduce the hourly rates to \$400/hour for partners and senior counsel, \$300 for associates, and \$150/hour for law clerks/paralegals. Here, the assistant, EO, billed 2.6 hours, but the tasks she performed are administrative in nature. Her allowable hours are reduced to zero (0). Plaintiff counsel AJT's hours expended on the Initial Disclosure template pursuant to CCP § 871.26 (b), (c), and (g), are excessive. The court will strike 7 hours from the total requested hours. AJT's hours are further reduced .9 for excessive time billed on this attorney fee motion, .8 hours for routine administrative functions and clerical communications, and 3.7 hours for duplicative prelitigation work. HM's hours are reduced 4.5 hours for excessive time billed on this attorney fee motion. Total compensable hours after reduction are; 8.9 for HM@\$400/hr., 38.8 for AJT@\$300/hr. and 0 for EO, for a total of \$15,200. No multiplier is awarded as this is a simple, straightforward lemon law case. Costs of \$6,900.20 are also awarded to Plaintiff.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503497	ROGERS-HARLESS vs GILL	DEMURRER ON CROSS-COMPLAINT

Tentative Ruling:

Continue the hearing on the demurrer to September 30, 2026, at 8:30am, D-4. Plaintiff's opposition is untimely. Defendant will be permitted to file a Reply to Plaintiff's untimely opposition by September 18, 2026.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2503747	TONG vs CITY OF RIVERSIDE, A CALIFORNIA CHARTER CITY AND MUNICIPAL CORPORATION	DEMURRER ON 3RD AMENDED PETITION

Tentative Ruling:

GRANT the Defendants' Request for Judicial Notice.

OVERRULE the demurrer to the writ of mandate. The allegations in the TAC give the City fair notice of Petitioner's theory. Petitioner alleges that the hearing officer failed to consider specified mitigation factors despite Petitioner's presentation of that evidence. The City should be able to determine how to respond to such an allegation. At this stage, accepting as true Petitioner's allegations that applicable procedures required the consideration of mitigation, and that the decision-maker did not consider it, are sufficient to survive demurrer.

First Cause of Action: Procedural Due Process (42 U.S.C. § 1983)

As to Defendant Davila

CCP § 1094.6(c) requires the local agency to prepare and deliver the complete record within 190 days after the petitioner files a written request. On the facts alleged in the TAC, the City delivered the recording within the statutory period. The TAC does not allege facts showing that the delay prevented Petitioner from receiving notice, participating in the hearing, filing this action, or obtaining judicial review. Indeed, Petitioner filed this action before the City produced the recording. Petitioner's assertion that the litigation prompted production does not itself show a deprivation of a federal procedural right.

SUSTAIN the demurrer with 30 days leave to amend.

As to Defendant Sunga

The TAC alleges that code enforcement employee Sunga materially participated in creating the hearing Order, "fabricated" an electronic image of Hearing Officer Palacio's signature on the Order, and caused the Order to issue as the hearing officer's decision. Accepting the allegations as true, the TAC sufficiently alleges that Sunga acted without Palacio's authorization and that the Order did not reflect the neutral hearing officer's decision. While it is true that Sunga's name does not appear anywhere on the Order, the court cannot resolve factual issues on demurrer.

OVERRULE.

Second Cause of Action: Equal Protection (42 U.S.C. § 1983)

The TAC, when read as a whole, alleges that similarly situated property owners of other races ordinarily received notice and an opportunity to correct the newly identified offending condition, but that employee Davila denied Petitioner that opportunity because of his race. Whether Petitioner can identify similarly situated comparators and prove intent cannot be resolved on demurrer.

OVERRULE

Third Cause of Action: Municipal Failure to Train (42 U.S.C. § 1983)

The TAC alleges that the City failed to train Palacios to consider mitigation or failed to provide an appropriate order form. (TAC, Para.26.) The TAC does not, however, identify the City's training practices, facts showing that final policymakers knew of and disregarded a pattern of similar violations, or circumstances making the asserted constitutional consequence patently obvious. The TAC's language that inadequate training "should have been obvious (TAC, Para. 26) does not supply the missing facts. The allegations are insufficient to allege the required *deliberate indifference* and *causation*.

SUSTAIN with 30 days leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2503747	TONG vs CITY OF RIVERSIDE, A CALIFORNIA CHARTER CITY AND MUNICIPAL CORPORATION	MOTION TO STRIKE 3RD AMENDED PETITION

Tentative Ruling:

DENY

While it is true that the audio recording delay occurred *after* the hearing, Paragraph 15 supplies the factual basis for the First Cause of Action and also provides procedural context for the writ. For Paragraph 17, the tenant's obstruction and Petitioner's offer of replacement housing to the tenant may be relevant to Petitioner's argument that the hearing officer failed to consider Petitioner's good-faith compliance efforts and other mitigation in assessing the penalty.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2507420	CARTER vs FCA US LLC	MOTION FOR SANCTIONS

Tentative Ruling:

Continue the hearing on the motion to September 23, 2026, at 8:30am, D-4.

Plaintiff has made an initial disclosure, and she requires additional time to conduct a diligent search for the specific categories of documents and information that are relevant to the issue. Plaintiff is not refusing to produce—she just requires additional time to find the documents. In addition, Defendants are not prejudiced, as there is no trial date currently set.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2602094	TORRES vs DC LOGISTICS, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR DC LOGISTICS, LLC

Tentative Ruling:

GRANT